3845

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN
TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the Amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the Amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, Fourteen (14) shares of capital stock of the American Vanadium Company, a corporation organized under the laws of the State of New Jersey, of the par value of One Hundred Dollars ($100.00) each, which said (14) shares were heretofore seized by the Alien Property Custodian under the provisions of said Act as the property of Mrs. Adelayda Heintschel, of Vienna, Austria.

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That the American Vanadium Company is in liquidation and that, as the Alien Property Custodian is informed, if the said Company proceeds with the liquidation each stockholder will receive One Thousand Two Hundred and Sixty Dollars ($1,260.00) in cash and Seven (7) shares of stock of the Collier Land Company for each share of stock of the American Vanadium Company.

(c) That, however, the Estate of James J. Flannery, deceased, has offered to pay One Thousand Seven Hundred Dollars ($1,700.00) in cash per share for all the outstanding stock of the American Vanadium Company, which, as the Alien Property Custodian is informed, represents Ninety-four and Thirty-nine One Hundredths per centum (94.39%) of the present value of all the holdings of the American Vanadium Company.

(d) That, as the Alien Property Custodian is informed, stockholders owning Ninety-eight per centum (98%) of stock of the American Vanadium Company (exclusive of the above named Fourteen (14) shares) have already accepted the said offer made by the Estate of James J. Flannery, deceased, and the acceptance thereof by the Alien Property Custodian is deemed to be advantageous to the trust involved.

(e) That an attempted sale at auction would be a useless formality and would involve unnecessary expense, delay and inconvenience, which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
May 16, 1923.

[No. 3845.]

GOVERNMENT PRINTING OFFICE